

Govind Singh v. State of U.P.

Allahabad High Court · Division Bench · 8 February 2019 · WRIT - C No. 64093 of 2012 · **Writ disposed; relegated to clause 6.5 of Supply Code.**

HEADNOTE

The Allahabad High Court declined to interfere with a post-disconnection recovery citation of Rs.76,251, holding that a dispute over the demand is to be raised under clause 6.5 of the Electricity Supply Code, 2005. The writ was disposed of with liberty to file a clause 6.5 application within 30 days, to be decided expeditiously.

FACTUAL SUMMARY

Govind Singh's electricity connection was permanently disconnected and a permanent disconnection certificate issued. He claimed all dues had been paid, yet a recovery citation dated 20 October 2012 was issued for Rs.76,251. He challenged the demand by writ, alleging no opportunity of hearing and no particulars of how the amount arose. Respondent no.5, the distribution licensee, pointed in its counter affidavit to the statutory remedy under clause 6.5 of the Electricity Supply Code, 2005. An earlier Division Bench had meanwhile stayed coercive action on the citation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery demand after permanent disconnection

HOLDING

A writ challenging a recovery citation after permanent disconnection, on the plea that no hearing was given and no particulars of the demand were furnished, will not be entertained where clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may file a clause 6.5 application within 30 days of a certified copy, and the authority shall decide it expeditiously without unnecessary adjournment. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RS.76,251 RECOVERY WAS DUE AFTER PERMANENT DISCONNECTION, OR WHETHER THE DUES HAD ALREADY BEEN PAID

The Court declined merits scrutiny and left the demand to a clause 6.5 application. ¶ 4